The examination is being carried out on the **following application documents**

Description, Pages

1-34 as originally filed

Claims, Numbers

1-15 as originally filed

Drawings, Sheets

1/7-7/7 as originally filed

1 Cited documents

Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 US 8 423 275 B1 (KANDAL PHILIPP [DE]) 16 April 2013 (2013-04-16)

D2 US 7 936 284 B2 (WAZE MOBILE LTD [IL]) 3 May 2011 (2011-05-03)

D3 US 2016/210860 A1 (BELZNER HEIDRUN [DE] ET AL) 21 July 2016 (2016-07-21)

D4 US 2014/214319 A1 (VUCETIC SLOBODAN [US] ET AL) 31 July 2014 (2014-07-31)

D5 US 2016/061618 A1 (BENENSON ITZHAK [IL] ET AL) 3 March 2016 (2016-03-03)

D6 US 2012/161984 A1 (AMIR EYAL [US]) 28 June 2012 (2012-06-28)

2 Non-unity (Article 82 EPC)

The requirement for unity of invention referred to in Article 82 EPC is not fulfilled.

2.1.1 The group of inventions 1.1 solves the technical problem of identifying a parking space search portion in a trip (subject-matter of claims 1-5, 14, 15).

2.1.2 The group of inventions 1.2 solves the technical problem of determining a parking related parameter (subject-matter of claims 6-13).

2.2 Single general concept

2.2.1 From the identification of the groups of inventions above and the objective technical problems they solve, it is immediately apparent that the single general concept underlying the subject-matter of all inventions consists of all the features of claim 1.

2.2.2 However, this single general concept is not inventive in view of the prior art at hand document D1 (see the relevant passages and reasoning below in section 4.1.1)

2.2.3 Therefore there is no single general inventive concept between the claimed groups of inventions 1.1-1.2. In other words, since the claimed groups of inventions 1.1-1.2 solve distinct problems, there are no same or corresponding special technical features common to all claimed groups of inventions, there is no synergy between any two of the groups of inventions identified above, and said groups of inventions can be implemented separately without modification. The technical relationship between the subject-matter of said groups of inventions required by Rule 44 EPC is lacking and the requirement for unity of invention referred to in Article 82 EPC is therefore not fulfilled.

2.3 In accordance with Rule 64 EPC this search report has been drawn up for those parts of the application which relate to the invention, or group of inventions, first mentioned in the claims, thereby covering the subject-matter of claims 1-5, 14, 15. Incidentally, the search has already also encompassed the subject-matter of the groups of inventions 1.2, and the European search report has also been drawn up for those parts of the application which relate to said groups of inventions, thereby **covering the subject-matter of all claims**.

The applicant is invited to **limit the application to one of the groups of inventions covered** by the European search report. The subject-matter to be excised may be made the subject of one or more divisional applications according to Rule 36 EPC. The divisional applications shall be filed with the European Patent Office in Munich, The Hague or Berlin and shall be in the language of the proceedings relating to the present application (Article 76(1) EPC and Rule 36(2) EPC).

3 Clarity (Article 84 EPC)

The application does not meet the requirements of Article 84 EPC, because the following claims are not clear, for the reasons explained hereafter.

3.1 Claim 11

Claim 11 recites the step of "comprising associating each of the obtained parking related parameters with the respective segment". However, according to claim 1, for each one of a plurality of segments of the electronic map, the parking related parameter is readily associated with the segment (last feature of claim 1). Therefore it is not clear how a (further) association according to claim 11 should be construed. The description does not appear to shed light on this point.

4 Novelty and inventive step (Articles 54(1), 54(2) and 56 EPC)

The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of independent claims 1, 14, 15 is not new within the meaning of Article 54(1) and 54(2) EPC.

4.1 Independent claim 1

4.1.1 D1 discloses (references in parentheses apply to document D1)

a method for generating parking related data in respect of one or more navigable elements of a navigable network within a geographic area, each navigable element being represented by a segment of an electronic map, the electronic map comprising a plurality of segments representative of the navigable network (column 2 lines 44-47 "a procedure for determining the probability of finding a parking place within a certain period of time on a pre-set stretch of road of an area with a multiplicity of stretches of road"), *said method comprising:*

obtaining positional data relating to trips made by vehicles in the navigable network, each trip being a journey ending with a stationary period indicative of the vehicle being in a parked state (column 2 lines 61-62 "the procedure has recourse to motion profiles of users of navigation devices in the area that are radiolocation-aided, especially satellite-aided", column 3 lines 7-12 "for each user, a “parking place found” event is determined if he has found a parking place. For example, the criteria for this can be a cessation of motion for a time that exceeds a fixed tolerance period and/or the navigation device having been positionally removed from a street");

analysing, for each one of the plurality of trips, the positional data to identify a parking space search portion of the trip (column 4 lines 58-60 "the motion profile of the user in the area is assessed according to the invention-specific criteria only if the user is perceived as searching for a parking place", column 4 lines 63-66 "A user especially can be perceived as searching for a parking place if he is in motion in the area over a time span that is above a preset minimum time at a speed below a minimum speed", column 5 lines 15-16 "make a determination that the user is involved in a search for a parking place")*; and*

analysing the positional data corresponding to the parking space search portions of the trips to obtain, for each one of a plurality of segments of the electronic map, a parking related parameter associated with the segment (column 5 lines 15-18 "make a determination that the user is involved in a search for a parking place, and thus for triggering a designation and evaluation of the motion profile").

The subject-matter of claim 1 differs from D1 in that the each trip is a journey not only ending with a stationary period indicative of the vehicle being in a parked state, like in D1, but between such periods. This distinguishing feature, however, is customary practice in the field of navigation systems, as pointed by D1 itself in the "background information" section: see for instance column 1 lines 37-39, column 1 lines 57-58, column 2 lines 8-9.

In addition, the distinguishing feature of claim 1 specifying the definition of a trip is not further used in any the method claimed, such that said distinguishing feature cannot contribute to an inventive step.

Therefore in view of D1 alone the subject-matter of claim 1 does not involve an inventive step.

4.1.2 In view of D2 alone the subject-matter of claim 1 is not inventive (see the relevant passages in the accompanying search report).

4.2 Independent claims 14, 15

The subject-matter of said claims corresponds to that of claim 1. For the same reasons as for claim 1, the subject-matter of claims 14, 15 does not involve an inventive step.

5 Dependent claims

Dependent claims 8, 9, 12 and 13 appears to **meet the patentability requirements of the EPC**.

Dependent claims 2-11, however, do not contain any features which, in combination with the features of any claim to which they refer, meet the requirements of the EPC in respect of inventive step.

5.1 Claims 2: see D1 column 5 lines 12-13, D2 column 5 lines 42-45, D3 §65, §80-83, §89-91 (regarding turns and loops); see D1 column 4 lines 63-66, D3 §64-65, §72-73 (regarding speed).

5.2 Claim 3: see D1 column 5 lines 10-11, column 5 lines 15-18, column 4 lines 63-66; see D2 column 5 lines 36-37; see D3 §64.

5.3 Claim 4: see D1 column 4 lines 63-66.

5.4 Claim 5: see D2 column 5 lines 9-11; see D3 §66.

5.5 Claim 6: D1 discloses all additional features of claim 6: see D1 column 2 lines 44-47, column 3 lines 52-55, column 4 lines 13-14.

5.6 Claim 7: D1 discloses all additional features of claim 7: see D1 column 3 lines 55-60.

5.7 Claims 8 and 9: in view of the cited prior art, especially D1, D2, D4, D5, D6, said claims are considered new and inventive (see D4 §33, D5 §53). Indeed, although prior art documents D2, D4, D5 and D6 are concerned with the estimation of a parking search time, none of the prior art document discloses an expected parking search time associated with a segment, as required by claim 8.

5.8 Claim 10: D1 discloses all additional features of claim 10: see D1 column 4 lines 25-37, column 4 line 44-49, column 6 lines 6-13.

5.9 Claim 11: notwithstanding the lack of clarity of claim 11 mentioned above, associating the parking parameter with the segment to which it is already associated, as recited by the last feature of claim 1, cannot be seen as having any technical effect.

5.10 Claim 12: in view of the cited prior art, especially D1 and D6 (see D6 §23, §32, §34-35, §48-50, §52, Figs 9, 10), said claim is considered new and inventive. Indeed, by combining D1 and D6, which discloses clustering of segments, the person skilled in the art would not come to a solution that falls within the scope of claim 12, since D1 modified by the teaching of D6 would not comprise relative values, but absolute values, as explicitly disclosed in D6 Fig 9.

5.11 Claim 13: by virtue of its dependence on claim 13. claim 14 is also considered new and inventive.

6 Double patenting

6.1 The subject-matter of dependent claim 8 of the present application, when taken dependent solely on independent claim 1, corresponds to the subject-matter of independent claim 1 of the granted patent EP3519774 based on the application EP17777724, which is the earlier application of the present divisional application. Similarly, when dependent claim 8 of the present application is taken dependent solely on independent claim 1, the subject-matter of dependent claim 9 (which depends on claim 8) corresponds to the subject-matter of claim 5 of the granted patent EP3519774.

6.2 The Applicant is reminded that the present patent application can thus be refused under Articles 97(2) and 125 EPC in accordance with G4/19 (see point 1 of the the Order, see also the EPO Guidelines G-IV.5.4.).

7 Further objections

7.1 Independent claims are not in the two-part form in accordance with Rule 43(1) EPC, which in the present case would be appropriate, with those features known in combination from the prior art being placed in the preamble (Rule 43(1)(a) EPC) and the remaining features being included in the characterising part (Rule 43(1)(b) EPC). Should the applicant further decide to enter the examination phase, independent claims should therefore be redrafted accordingly.

7.2 The features of the claims should be provided with reference signs placed in parentheses to increase the intelligibility of the claims (Rule 43(7) EPC). This applies to both the preamble and characterising portion (see Guidelines F-IV, 4.19).

7.3 To meet the requirements of Rule 42(1)(b) EPC, the relevant prior art documents cited in the accompanying search report should be identified in the description and the relevant background art disclosed therein should be briefly discussed.

8 Conclusion

8.1 Should the applicant further decide to enter the examination phase, a new independent claim should be filed. In this case, the applicant should also indicate in the letter of reply the difference of the subject-matter of the new claim vis-à-vis the state of the art (i.e. the documents cited in the present written

opinion) and the significance thereof, i.e. the underlying technical problem which the features of the independent claim, which form a contribution over the prior art, solve in an inventive way.

8.2 Should the applicant further decide to enter the examination phase, he/she is further requested to indicate the passages in the description where the skilled person would have identified the special contribution and/or surprising effect of the characterising features and to apply the "problem-solution approach" as outlined in the Guidelines G-VII, 5 to indicate the inventiveness of his solution.

8.3 The applicant is further reminded that in any case, the application may not be amended in such a way that it contains subject-matter which extends beyond the content of the application as filed (Article 123(2) EPC).

8.4 Should the applicant further decide to enter the examination phase, in order to facilitate the examination of the conformity of the amended application with the requirements of Article 123(2) EPC, he/she is requested to clearly identify the amendments carried out, irrespective of whether they concern amendments by addition, replacement or deletion, and to indicate the passages of the application as filed on which these amendments are based (see Rule 137(4) EPC and Guidelines H-III, 2.1).

8.5 In case the Applicant decides to incorporate the subject-matter of one or more dependent claims into an independent claim, the Applicant should also indicate the basis for the subject-matter of the remaining dependent claims of the amended set of claims, since their subject-matter subsequently comprise the subject-matter of the amended independent claim, which may not have been claimed in the original set of claims.